

Residential Care Homes (Elderly Persons) Ordinance

(Cap. 459)

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An Ordinance to regulate homes established for the residential care of persons who have attained the age of 60 years.

[1 April 1995] *L.N. 95 of 1995*
(*Format changes—E.R. 1 of 2012*)

(*Enacting provision omitted—E.R. 1 of 2012*)

Part 1

Preliminary

1. Short title

(*Amended E.R. 4 of 2020*)

- (1) This Ordinance may be cited as the Residential Care Homes (Elderly Persons) Ordinance.
- (2) (*Omitted as spent—E.R. 1 of 2012*)

2. Interpretation

- (1) In this Ordinance, unless the context otherwise requires—
(*Amended 12 of 2023 s. 3*)

Cap. 613 (《第613章》) means the Residential Care Homes (Persons with Disabilities) Ordinance (Cap. 613); (*Added 12 of 2023 s. 3*)

Cap. 613A (《第613A章》) means the Residential Care Homes (Persons with Disabilities) Regulation (Cap. 613 sub. leg. A); (*Added 12 of 2023 s. 3*)

Director (署長) means the Director of Social Welfare;

inspector (督察) means a person appointed under section 17 to be an inspector of residential care homes;

licence (牌照、牌) means a licence issued under section 8(2)(a) or renewed under section 9;

management officer (管理人員) means—

- (a) in relation to a sole proprietorship—an individual who is the sole proprietor or is concerned in the management of the sole proprietorship;
- (b) in relation to a body corporate—an individual who is a director of the body corporate or is concerned in its management; or
- (c) in relation to a partnership—an individual who is a partner in the partnership or is concerned in its management; (*Added 12 of 2023 s. 3*)

material date (關鍵日期) means the 1st anniversary of the date on which the Residential Care Homes Legislation (Miscellaneous Amendments) Ordinance 2023 (12 of 2023) is published in the Gazette*; (*Added 12 of 2023 s. 3*)

operator (營辦人), in relation to a residential care home, means a person who holds a licence issued in respect of the residential care home; (*Added 12 of 2023 s. 3*)

premises (處所) includes any building, enclosure, ground or open air space;

residential care home (安老院) means any premises at which more than 5 persons who have attained the age of 60 years are habitually received for the purposes of care while resident therein; (*Amended 12 of 2023 s. 3*)

residential care home for PWDs (殘疾人士院舍) has the meaning given by section 2(1) of Cap. 613; (*Added 12 of 2023 s. 3*)

responsible person (負責人), in relation to a residential care home, means a person who—

- (a) has become the responsible person of the residential care home under section 11A(2), 11B(2) or 11I(4); and
- (b) has not ceased to be such a responsible person under section 11F(5), 11G(1) or 11H(4). (*Added 12 of 2023 s. 3*)

(Amended 12 of 2011 s. 33; 12 of 2023 s. 3)

- (2) To avoid doubt, in this Ordinance, a reference to this Ordinance includes any subsidiary legislation made under this Ordinance. (*Added 12 of 2023 s. 3*)

Editorial Note:

* Date of publication in the Gazette: 16 June 2023.

3. Application

- (1) This Ordinance does not apply to— (*Amended 12 of 2023 s. 4*)
 - (a) any residential care home maintained and controlled by—
 - (i) the Government;
 - (ii) the Housing Authority;
 - (b) any residential care home used or intended for use solely for the purpose of the medical treatment of persons requiring medical treatment;
 - (ba) a treatment centre as defined by section 2 of the Drug Dependent Persons Treatment and Rehabilitation Centres (Licensing) Ordinance (Cap. 566); or (*Added 12 of 2023 s. 4*)
 - (c) any residential care home or type or description of residential care home excluded by the Director by order published in the Gazette.
- (2) An order under subsection (1)(c) may—

- (a) be made subject to such conditions;
 - (b) be made subject to such geographical limitations;
 - (c) have effect for such period; or
 - (d) have such partial application,
- as may be indicated in the order.
- (3) An order under subsection (1)(c) is subsidiary legislation.
(Added 12 of 2023 s. 4)

4. Exercise of Director's functions

(Amended 12 of 2011 s.34)

- (1) A Deputy Director of Social Welfare may exercise any function of the Director under any provision of this Ordinance. *(Amended 12 of 2011 s. 34)*
- (2) The Director may authorize any public officer to exercise any function of the Director under any provision of this Ordinance.
- (3) A person to whom this subsection applies is not personally liable for any civil liability in respect of anything done or omitted to be done by the person in good faith in the exercise of a function or purported exercise of a function under this Ordinance. *(Added 12 of 2011 s. 34)*
- (4) Subsection (3) applies to—
 - (a) the Director;
 - (b) any Deputy Director of Social Welfare; and
 - (c) any public officer authorized under subsection (2).
(Added 12 of 2011 s. 34)
- (5) The protection conferred by subsection (3) does not affect any liability of the Government for the act or omission. *(Added 12 of 2011 s. 34)*

5. Power of Chief Executive to give directions

- (1) The Chief Executive may give to the Director, any Deputy Director of Social Welfare or to any other public officer any directions that the Chief Executive thinks fit with respect to the exercise of their respective functions under this Ordinance, either generally or in any particular case.
- (2) A person to whom a direction is given by the Chief Executive under subsection (1) must, in the exercise of the person's functions under this Ordinance, comply with that direction.

(Amended 17 of 1999 s. 3; 12 of 2011 s. 35)

Part 2

Restriction on Operation of Residential Care Homes

6. Residential care homes must be licensed

(Amended 12 of 2023 s. 5)

- (1) Any person who operates, keeps, manages or otherwise has control of a residential care home while no licence is in force in respect of the residential care home commits an offence and is liable to a fine of \$1,000,000 and imprisonment for 2 years and to a fine of \$10,000 for each day during which the offence continues. *(Amended 12 of 2023 s. 5)*
- (2) *(Repealed 12 of 2023 s. 5)*
- (3) It is not a defence for a person charged with an offence under subsection (1) to show that the person did not know that at the relevant time no licence was in force in respect of the residential care home. *(Replaced 12 of 2023 s. 5)*
- (4) It is not a defence for a person charged with an offence under subsection (1) to show that, if the residential care home is also a residential care home for PWDs, the person did not know that at the relevant time neither a licence nor a certificate of exemption issued under Cap. 613 was in force in respect of the residential care home. *(Added 12 of 2011 s. 36. Amended 12 of 2023 s. 5)*

6A. Certain residential care homes for PWDs excepted from application of section 6

Section 6 does not apply to a residential care home that is also a residential care home for PWDs if a licence or certificate of

exemption issued under Cap. 613 is in force in respect of the residential care home.

(Added 12 of 2011 s. 37. Amended 12 of 2023 s. 6)

6B. Certain nursing homes excepted from application of section 6

Section 6 does not apply to a residential care home that is also a ***scheduled nursing home*** (as defined by section 124 of the Private Healthcare Facilities Ordinance (Cap. 633)) if an exemption granted under section 128 of that Ordinance is in force in respect of the residential care home.

(Added 34 of 2018 s. 143 and E.R. 5 of 2018)

Part 3

(Part 3 Repealed 12 of 2023 s. 7)

7. *(Repealed 12 of 2023 s. 7)*

Part 4

Licences

Division 1—Licence Applications

(Added 12 of 2023 s. 8)

8. Application for and issue of licence

- (1) An application by a person for a licence in respect of a residential care home must be— *(Amended 12 of 2023 s. 9)*
 - (a) made to the Director in such form and manner as the Director may determine; and
 - (b) accompanied by such information, particulars and plans as the Director may require.
- (2) The Director must, on receipt of an application under subsection (1), determine the application— *(Amended 12 of 2023 s. 9)*
 - (a) by issuing to and in the name of the applicant, a licence imposing such conditions, in relation to the operation, keeping, management or other control of the residential care home, as the Director thinks fit; or
 - (b) by refusing to issue a licence to the applicant.
- (3) The Director may refuse to issue a licence to the applicant if it appears to the Director— *(Amended 12 of 2023 s. 9)*
 - (a) that the applicant or any person the applicant proposes to employ at the residential care home is not a fit and proper person to operate, take part in the management of or be employed at the residential care home; *(Amended 12 of 2011 s. 38)*

- (ab) that the applicant does not comply with section 11A(1);
(Added 12 of 2023 s. 9)
- (ac) that the person proposed to be the responsible person of the residential care home under section 11A(1) is not a fit and proper person to perform the duties mentioned in section 11D; *(Added 12 of 2023 s. 9)*
- (b) that for reasons connected with the situation, means of ingress and egress, design, construction, size, type of building, staffing or equipment, the premises to be used for the residential care home are not fit to be used for the purposes of a residential care home;
- (c) that such premises do not comply with any requirements relating to design, construction, fire precautions, health, sanitation and safety set out in— *(Amended 12 of 2023 s. 9)*
 - (i) any regulation made under section 38 of the Buildings Ordinance (Cap. 123);
 - (ii) any Code of Practice published by the Director of Fire Services under section 16(1)(b) of the Buildings Ordinance (Cap. 123);
 - (iii) any Code of Practice issued by the Director under section 22; or
 - (iv) any regulation made under section 23;
- (d) that the proposed name of the residential care home is unsuitable or is the same as or similar to—
 - (i) the name of a residential care home in respect of which a licence is in force or has been suspended, surrendered or cancelled; *(Replaced 12 of 2023 s. 9)*
 - (ii) the name of a residential care home for PWDs in respect of which a licence issued under Cap. 613

is in force or has been suspended, surrendered or cancelled; or *(Replaced 12 of 2023 s. 9)*

(iii) the name of a residential care home for PWDs in respect of which a certificate of exemption issued under Cap. 613 is in force. *(Replaced 12 of 2023 s. 9)*

(iv) *(Repealed 12 of 2023 s. 9)*

(4) A licence issued under this section must— *(Amended 12 of 2023 s. 9)*

- (a) be in such form as the Director may determine;
- (b) be endorsed with the conditions, if any, imposed under subsection (2)(a); and
- (c) authorize the person in whose name it is issued to operate, keep, manage or otherwise have control of a residential care home of a type prescribed for the purposes of this section, for a period of 36 months or such lesser period as may be indicated therein.

(4A) If a licence issued under Cap. 613 is for the time being in force in respect of the residential care home, the applicant must, after being advised by the Director that the application under subsection (1) is successful, surrender the first-mentioned licence to the Director on the issue of a licence under this section. *(Added 12 of 2011 s. 38)*

(5) A licence or a copy thereof purporting to be certified under the hand of the Director is evidence of the facts stated therein as at the date of such licence or such copy thereof and is to be received in evidence without further proof.

(6) A certificate purporting to be certified under the hand of the Director that a residential care home is licensed or is not licensed is evidence of the facts stated therein as at the date

of such certificate and is to be received in evidence without further proof.

(Amended 12 of 2023 s. 9)

8A. Fit and proper requirement for licence applicant

For section 8(3)(a), in considering whether an applicant is a fit and proper person to operate a residential care home, the Director must have regard to all relevant matters, including—

- (a) if the applicant is a sole proprietor—the matters set out in section 1 of Schedule 1;
- (b) if the applicant is a body corporate—the matters set out in section 2 of Schedule 1; or
- (c) if the applicant is a partnership—the matters set out in section 3 of Schedule 1.

(Added 12 of 2023 s. 10)

9. Renewal of licence

- (1) The operator of a residential care home may, before the expiration of the licence, apply for the licence to be renewed for a period of not more than 36 months.
- (2) An application for renewal of a licence must be made to the Director— *(Amended 12 of 2023 s. 11)*
 - (a) not more than 4 months and not less than 2 months prior to the expiration of the licence or within such other period prior to the expiration thereof as the Director may in writing permit;
 - (b) in such form and manner as the Director may determine.
- (3) The Director may in respect of the renewed licence impose any condition, in relation to the operation, keeping, management or other control of the residential care home, in

addition to or instead of any condition previously imposed under section 8(2)(a).

- (4) A renewal of a licence under this section before the expiration of the licence takes effect on the day following the day of its expiration.
- (5) Subject to subsection (5A), any licence in respect of which an application for renewal is made under this section and which, but for this subsection, would have expired before the determination of the application remains in effect until the determination by the Director of the application.
- (5A) Subsection (5) does not apply if—
 - (a) the application is withdrawn; or
 - (b) the licence is cancelled or suspended under section 10.
(Added 12 of 2023 s. 11)
- (6) A renewal of a licence granted under this section takes effect on the day following the day upon which the licence would have expired but for subsection (5), for a period of 36 months or such lesser period as may be indicated by the Director at the time of renewal.

(Amended 12 of 2023 s. 11)

10. Cancellation and suspension of licence or refusal to renew and amendment or variation of conditions

- (1) The Director may cancel, suspend or refuse to renew the licence in respect of a residential care home, or amend or vary any condition of the licence— *(Amended 12 of 2011 s. 39)*
 - (a) on any ground specified in section 8(3)(a), (b) or (c) which would have entitled the Director to refuse an application for the licensing of that residential care home;

- (ab) on the ground that the operator of the residential care home fails to comply with section 11B(1), 11F(4), 11G(2), 11H or 11J; *(Added 12 of 2023 s. 12)*
- (ac) on the ground that the Director is not satisfied that the person proposed to be the responsible person of the residential care home under section 11B(1), 11F(4), 11G(2) or 11H(3) is a fit and proper person to perform the duties mentioned in section 11D; *(Added 12 of 2023 s. 12)*
- (b) on the ground that—
 - (i) the operator has been convicted of an offence against this Ordinance or an indictable offence; or *(Amended 12 of 2011 s. 39)*
 - (ii) any other person has been convicted of an offence against this Ordinance or an indictable offence in respect of that residential care home;
- (c) on the ground that, in respect of that residential care home or the residents thereof—
 - (i) any of the provisions of this Ordinance have been or are being contravened; or
 - (ii) any requirement, order or direction made or given under this Ordinance has not been complied with by the operator;
- (d) on the ground that any condition of the licence has not been or is not being complied with by the operator;
- (e) on the ground that it appears to the Director that—*(Amended 12 of 2023 s. 12)*
 - (i) that residential care home has ceased to be operated as such or to exist;

- (ii) the operator has ceased to operate, keep, manage or otherwise have control of that residential care home; or
 - (iii) that residential care home has, on any occasion since the date on which it was licensed, been operated in a manner contrary to the public interest. (*Amended 12 of 2023 s. 12*)
- (2) A decision under subsection (1) (other than a decision to refuse to renew a licence) that is appealed against under section 12 is suspended in its operation as from the day on which the appeal is made until the appeal is disposed of, withdrawn or abandoned unless—
 - (a) the suspension would, in the opinion of the Director, be contrary to the public interest; and
 - (b) the order on the decision contains a statement to that effect. (*Added 12 of 2011 s. 39*)
- (3) If a decision to refuse to renew a licence under subsection (1) is appealed against under section 12 and the licence would, but for this subsection, expire before the determination of the appeal, the licence remains in force until the appeal is disposed of, withdrawn or abandoned unless—
 - (a) it would, in the opinion of the Director, be contrary to the public interest for the licence to remain in force; and
 - (b) the order on the decision contains a statement to that effect. (*Added 12 of 2011 s. 39*)
- (4) If a licence is for the time being in force in respect of a residential care home and an application for the issue of a licence in respect of the same residential care home premises is successful under Cap. 613, the Director must cancel the licence issued under this Ordinance immediately before issuing a licence under section 7 of that Ordinance. (*Added 12 of 2011 s. 39. Amended 12 of 2023 s. 12*)

11. Notice of refusal to issue or renew licence and of cancellation or suspension, etc.

(Amended 12 of 2023 s. 13)

- (1) The Director must, before refusing an application for a licence or for the renewal of a licence, or before exercising the power under section 10(1), give notice to the applicant or the operator of a residential care home of the intention to do so— *(Amended 12 of 2023 s. 13)*
 - (a) stating the grounds on which the Director intends to refuse the application or exercise the power under that section; and
 - (b) stating that the applicant or the operator may make written representations to the Director.
- (2) If the Director decides to refuse an application for a licence or for the renewal of a licence, or if the Director decides to exercise the power under section 10(1), the Director must make a written order, properly dated and signed, to that effect.
- (3) The Director must send a copy of the written order under subsection (2) to the applicant or the operator by delivering it personally or by registered post to the applicant or the operator, at the address last known to the Director.

(Replaced 12 of 2011 s. 40. Amended 12 of 2023 s. 13)

Division 2—Responsible Persons

(Division 2 added 12 of 2023 s. 14)

11A. Licence applicant to propose responsible person

- (1) For an application for a licence in respect of a residential care home under section 8, the applicant must propose a management officer of the applicant (*proposed responsible*

person) to be the responsible person of the residential care home.

- (2) If, on the application, the Director issues a licence in respect of the residential care home, the proposed responsible person becomes the responsible person of the residential care home on the day on which the licence takes effect.
- (3) On issuing the licence, the Director must—
 - (a) by a written notice, inform the applicant of the effect of subsection (2); and
 - (b) send a copy of the notice to the proposed responsible person—
 - (i) by delivering it personally to the person; or
 - (ii) by registered post to the person at the person's correspondence address mentioned in section 11C(a).

11B. Certain operators to propose responsible person on renewal application

- (1) For an application for the renewal of a licence in respect of a residential care home under section 9, the operator of the residential care home must propose a management officer of the operator (*proposed responsible person*) to be the responsible person of the residential care home if—
 - (a) the application is the first application for the renewal of the licence made on or after the material date; and
 - (b) the licence—
 - (i) was in force immediately before the material date; or
 - (ii) is issued on or after the material date on an application made before that date.

- (2) If, on the application, the Director renews the licence, the proposed responsible person becomes the responsible person of the residential care home—
 - (a) if section 9(4) applies—on the day on which the renewal takes effect; or
 - (b) if section 9(5) applies—on the day after the date on which the application is determined.
- (3) On renewing the licence, the Director must—
 - (a) by a written notice, inform the operator of the effect of subsection (2); and
 - (b) send a copy of the notice to the proposed responsible person—
 - (i) by delivering it personally to the person; or
 - (ii) by registered post to the person at the person's correspondence address mentioned in section 11C(a).

11C. How to propose responsible person

If an applicant or operator is required under this Division to propose a management officer of the applicant or operator (***proposed responsible person***) to be the responsible person of a residential care home, the proposal must—

- (a) contain the name and correspondence address of the proposed responsible person;
- (b) contain a statement made by the proposed responsible person indicating his or her consent to be the responsible person of the residential care home;
- (c) contain any other information specified by the Director; and

- (d) be made in the form and manner specified by the Director.

11D. Duties of responsible person

The duties of a responsible person of a residential care home are—

- (a) to ensure adequate supervision of the operation, keeping, management and control of the residential care home for protecting the interest and safety of the residents of the residential care home; and
- (b) to ensure that the residential care home is operated in compliance with this Ordinance.

11E. Fit and proper requirement for responsible person

For sections 8(3)(ac), 10(1)(ac), 11F(1) and 11I(1)(b), in considering whether a person is a fit and proper person to perform the duties mentioned in section 11D, the Director must have regard to all relevant matters, including the matters set out in Schedule 2.

11F. Change of responsible person as required by Director

- (1) The Director may, by a written notice given to the operator of a residential care home, direct that the responsible person of the residential care home (*outgoing responsible person*) cease to be such a responsible person if satisfied that the person—
 - (a) is no longer a fit and proper person to perform the duties mentioned in section 11D; or
 - (b) has failed to perform any of the duties.
- (2) The notice must—
 - (a) state that—
 - (i) the Director is satisfied of the matter mentioned in subsection (1)(a) or (b); and

- (ii) the outgoing responsible person ceases to be the responsible person of the residential care home on the date of the notice; and
- (b) require the operator to propose another management officer of the operator to be the responsible person of the residential care home.
- (3) The Director must also send a copy of the notice to the outgoing responsible person.
- (4) The operator must, within 7 days after the date of the notice or a longer period that the Director permits, propose another management officer of the operator to be the responsible person of the residential care home.
- (5) The outgoing responsible person ceases to be the responsible person of the residential care home on the date of the notice.

11G. Change of responsible person because of death, incapacity, etc.

- (1) The responsible person of a residential care home ceases to be such a responsible person when he or she—
 - (a) dies;
 - (b) becomes incapable of managing and administering his or her property and affairs because of mental or physical incapacity;
 - (c) ceases to be a management officer of the operator of the residential care home; or
 - (d) gives a written notice to the operator of the residential care home and the Director to withdraw his or her consent to be the responsible person of the residential care home.
- (2) If an event described in subsection (1)(a), (b), (c) or (d) (*relevant event*) occurs, the operator of the residential care home must, within the period specified in subsection (3)—

- (a) inform the Director of the relevant event in the form specified by the Director; and
 - (b) propose another management officer of the operator to be the responsible person of the residential care home.
- (3) The period specified for subsection (2) is—
 - (a) 7 days after the date on which the operator becomes aware of the relevant event; or
 - (b) a longer period that the Director permits.

11H. Change of responsible person in other circumstances

- (1) The operator of a residential care home may change the responsible person of the residential care home in circumstances other than those set out in sections 11F and 11G by giving a written notice to the Director.
- (2) The notice must—
 - (a) state—
 - (i) the operator's intention to change the responsible person of the residential care home; and
 - (ii) the date on which the responsible person of the residential care home (*outgoing responsible person*) will cease to be such a responsible person (*cessation date*);
 - (b) be given at least 14 days before the cessation date; and
 - (c) be given in the form and manner specified by the Director.
- (3) When giving the notice, the operator must also propose another management officer of the operator to be the responsible person of the residential care home.
- (4) The outgoing responsible person ceases to be the responsible person of the residential care home on the cessation date.

11I. Director to specify date of becoming responsible person

- (1) This section applies if—
 - (a) the operator of a residential care home proposes a management officer of the operator (***proposed responsible person***) to be the responsible person of the residential care home under section 11F(4), 11G(2) or 11H(3); and
 - (b) the Director is satisfied that the proposed responsible person is a fit and proper person to perform the duties mentioned in section 11D.
- (2) The Director must, by a written notice—
 - (a) inform the operator that the Director is satisfied of the matter mentioned in subsection (1)(b); and
 - (b) specify a date (being one after the date of the notice) on which the proposed responsible person becomes the responsible person of the residential care home (***specified date***).
- (3) The Director must also send a copy of the notice to the proposed responsible person—
 - (a) by delivering it personally to the person; or
 - (b) by registered post to the person at the person's correspondence address mentioned in section 11C(a).
- (4) The proposed responsible person becomes the responsible person of the residential care home on the specified date.

Division 3—Reporting Requirements

(Division 3 added 12 of 2023 s. 14)

11J. Operator to report certain events

- (1) The operator of a residential care home must report to the Director if any of the events specified in subsection (3) occurs.
- (2) The report must—
 - (a) be given in writing within 7 days after the date on which the operator becomes aware of the event or a longer period that the Director permits; and
 - (b) contain the information specified by the Director.
- (3) The following events are specified for subsection (1)—
 - (a) for an operator that is a sole proprietor—
 - (i) a prosecution is started against the operator or the responsible person of the residential care home for an indictable offence in Hong Kong;
 - (ii) a prosecution is started against the operator or the responsible person for an offence punishable with imprisonment (however described) in a place outside Hong Kong;
 - (iii) the operator or the responsible person is convicted of an indictable offence in Hong Kong;
 - (iv) the operator or the responsible person is sentenced to imprisonment (however described) in a place outside Hong Kong, whether or not the sentence is suspended;
 - (v) the operator or the responsible person becomes an undischarged bankrupt;
 - (vi) the operator or the responsible person enters into a composition or scheme of arrangement with their creditors;
 - (vii) a body corporate of which the operator or the responsible person is a director goes into

- liquidation or becomes the subject of a winding-up order;
- (viii) there is a change in the name or correspondence address of the responsible person;
- (b) for an operator that is a body corporate—
- (i) a prosecution is started against the operator or the responsible person of the residential care home for an indictable offence in Hong Kong;
- (ii) a prosecution is started against the operator or the responsible person for an offence punishable with imprisonment (however described) in a place outside Hong Kong;
- (iii) the operator or the responsible person is convicted of an indictable offence in Hong Kong;
- (iv) the operator is convicted of an offence punishable with imprisonment (however described) in a place outside Hong Kong;
- (v) the responsible person is sentenced to imprisonment (however described) in a place outside Hong Kong, whether or not the sentence is suspended;
- (vi) the operator goes into liquidation or becomes the subject of a winding-up order;
- (vii) the operator or the responsible person enters into a composition or scheme of arrangement with their creditors;
- (viii) a body corporate of which the operator or the responsible person is a director goes into liquidation or becomes the subject of a winding-up order;

- (ix) the responsible person becomes an undischarged bankrupt;
- (x) there is a change in the name or correspondence address of the responsible person; or
- (c) for an operator that is a partnership—
 - (i) a prosecution is started against any partner in the partnership (*partner*) or the responsible person of the residential care home for an indictable offence in Hong Kong;
 - (ii) a prosecution is started against any partner or the responsible person for an offence punishable with imprisonment (however described) in a place outside Hong Kong;
 - (iii) any partner or the responsible person is convicted of an indictable offence in Hong Kong;
 - (iv) any partner (being an individual) or the responsible person is sentenced to imprisonment (however described) in a place outside Hong Kong, whether or not the sentence is suspended;
 - (v) any partner (being a body corporate) is convicted of an offence punishable with imprisonment (however described) in a place outside Hong Kong;
 - (vi) any partner or the responsible person becomes an undischarged bankrupt;
 - (vii) any partner goes into liquidation or becomes the subject of a winding-up order;
 - (viii) any partner or the responsible person enters into a composition or scheme of arrangement with their creditors;
 - (ix) a body corporate of which any partner or the responsible person is a director goes into

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liquidation or becomes the subject of a winding-up order;

- (x) there is a change in the name or correspondence address of the responsible person.

Part 5

Appeals

(Part V replaced 12 of 2011 s. 41)

12. Appeals against decisions of Director

A person who is aggrieved by any decisions made in respect of the person under section 8, 9 or 10(1) may appeal to the Administrative Appeals Board.

(Amended 12 of 2023 s. 15)

13-16. *(Repealed 12 of 2011 s. 41)*

Part 6

Supervision of Residential Care Homes

17. Appointment of inspectors

The Director may by notice in writing appoint—

- (a) any officer of the Social Welfare Department;
- (b) any officer of the Buildings Department;
- (c) any person who is registered as a medical practitioner, or who is deemed to be so registered under section 29 of the Medical Registration Ordinance (Cap. 161); and
- (d) any person with full registration within the meaning of the Nurses Registration Ordinance (Cap. 164), (*Amended 24 of 2024 s. 92*)

to be an inspector of residential care homes.

18. Inspection of residential care homes

(1) In this section, *specified person* (指明人士) means—

- (a) the Director;
- (b) an officer of the Fire Services Department; or
- (c) an inspector.

(2) If a specified person produces, if so required, proof of identity as the specified person, and the specified person's identity card issued under the Registration of Persons Ordinance (Cap. 177), the specified person may—

- (a) at all reasonable times enter and inspect any residential care home or any premises which the specified person has reason to suspect are used as or for the purposes of a residential care home (*suspected premises*);

- (b) require any person taking part in the operation or management of the residential care home or suspected premises to—
 - (i) produce any book, document or other article relating to the operation or management of the residential care home or suspected premises, or to any other activity in respect of the residential care home or suspected premises; or
 - (ii) give any information relating to the operation, management or activity mentioned in subparagraph (i);
- (c) remove for further examination from the residential care home or suspected premises any book, document or other article which the specified person has reason to suspect is evidence of the commission of an offence against this Ordinance;
- (d) remove for further examination from the residential care home any book, document or other article which the specified person has reason to suspect is evidence of a ground for the cancellation of the licence issued in respect of it; and
- (e) do any other things that are necessary for—
 - (i) the inspection of the residential care home; or
 - (ii) the inspection or testing of any equipment, works or system used for or in connection with the operation, keeping, management or other control of the residential care home.

(Replaced 12 of 2011 s. 42)

18A. Protection of specified persons from liability for certain acts and omissions

- (1) A specified person under section 18 is not personally liable for any civil liability in respect of anything done or omitted to be done by the specified person in good faith in the exercise of a function or purported exercise of a function under this Ordinance.
- (2) The protection conferred by subsection (1) does not affect any liability of the Government for the act or omission.

(Added 12 of 2011 s. 43)

19. Director may direct remedial measures

- (1) The Director may, in respect of any residential care home, by notice in writing, give such directions as appear to the Director to be required to secure that— *(Amended 12 of 2023 s. 16)*
 - (a) it is operated and managed satisfactorily;
 - (b) the welfare of its residents is promoted in a proper manner;
 - (c) adequate apparatus and equipment required as safeguards against fire or other hazard likely to endanger the lives or health of residents are provided in the residential care home; and
 - (d) the provisions of this Ordinance are complied with.
- (2) A notice under subsection (1)—
 - (a) must be served personally or by registered post on a person who operates, keeps, manages or otherwise has control of the residential care home; and *(Replaced 12 of 2023 s. 16)*
 - (b) must indicate a period within which the directions must be complied with. *(Amended 12 of 2023 s. 16)*

20. Director may order cessation of use of premises as a residential

care home

- (1) The Director may—
- (a) if it appears to the Director that there is any danger or risk of danger to persons in residence in a residential care home; or
 - (b) if, in respect of any such residential care home, the requirements of a direction given under section 19(1) are not complied with within the period indicated in the notice served under that section,
- by order in writing direct that the premises used as a residential care home cease to be used as a residential care home for such period as the Director thinks fit or until further notice. (*Amended 12 of 2023 s. 17*)
- (2) An order under this section— (*Amended 12 of 2023 s. 17*)
- (a) must be served on a person who operates, keeps, manages or otherwise has control of the residential care home concerned; and
 - (b) takes effect from the date of service. (*Amended 12 of 2023 s. 17*)
- (3) It is sufficient service of an order under this section if— (*Amended 12 of 2023 s. 17*)
- (a) it is delivered personally to the person on whom it is to be served;
 - (b) it is sent by registered post to the last known address of that person; or
 - (c) a copy thereof is posted in a conspicuous place upon or in the premises to which it relates.
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Part 7

Miscellaneous

21. Offences in relation to licences

(Amended 12 of 2023 s. 18)

(1)-(2) *(Repealed 12 of 2023 s. 18)*

(3) Any person who operates, keeps, manages or otherwise has control of a residential care home in respect of which a licence has been issued— *(Amended 12 of 2023 s. 18)*

- (a) in contravention of any condition of the licence;
- (b) in any premises other than premises indicated in the licence; or
- (c) under any name other than the name indicated in the licence,

commits an offence.

(4) If a condition of a licence issued in respect of a residential care home is contravened, the operator of the residential care home commits an offence unless the operator proves that— *(Amended 12 of 2023 s. 18)*

- (a) the operator did not know and had no reason to suspect the existence of the circumstances giving rise to the contravention; and
- (b) the operator could not, by the exercise of reasonable supervision and reasonable diligence, have prevented those circumstances arising.

(5) If an offence under subsection (3) is alleged to have been committed, proof that a defendant did any act in connection with the operation, keeping, management or other control of

a residential care home is, in the absence of evidence to the contrary, proof that the defendant operated, kept, managed or otherwise had control of a residential care home.

- (6) Any person who—
- (a) in or in connection with any application under this Ordinance makes any statement or furnishes any information, whether such statement be oral or written, which is false in any material particular and which the person knows or reasonably ought to know is false in such particular;
 - (b) obstructs the Director, any officer of the Fire Services Department or any inspector in the exercise of any power conferred on the Director, officer or inspector by this Ordinance;
 - (c) refuses to produce any book, document or other article upon being so required under section 18 or furnishes any information which is false in a material particular and which the person knows or reasonably ought to know is false in such particular;
 - (d) fails to comply with the requirements of a direction given under section 19 within the period indicated in the notice served thereunder;
 - (e) fails to comply with the requirements of an order served on the person under section 20,
- commits an offence.
- (7) Any person who commits an offence under this section is liable to a fine at level 6 and to imprisonment for 2 years and to a fine of \$10,000 for each day during which the offence continues.

(Amended 12 of 2023 s. 18)

21A. Liability of responsible person

If the operator of a residential care home commits an offence under this Ordinance, and it is proved that the offence—

- (a) was committed with the consent or connivance of the responsible person of the residential care home; or
- (b) was attributable to any neglect on the part of the responsible person of the residential care home in performing the duties mentioned in section 11D,

the responsible person also commits the offence.

(Added 12 of 2023 s. 19)

21B. Liability of directors, partners, etc.

(1) If—

- (a) a sole proprietor commits an offence under this Ordinance; and
- (b) it is proved that the offence was committed with the consent or connivance of a person concerned in the management of the sole proprietorship,

the person also commits the offence.

(2) If—

- (a) a body corporate commits an offence under this Ordinance; and
- (b) it is proved that the offence was committed with the consent or connivance of a director of the body corporate, or of a person concerned in the management of the body corporate,

the director or the person, as the case requires, also commits the offence.

(3) If—

- (a) a partner in a partnership commits an offence under this Ordinance; and
 - (b) it is proved that the offence was committed with the consent or connivance of another partner in the partnership, or of a person concerned in the management of the partnership,
- the other partner or the person, as the case requires, also commits the offence.

(Added 12 of 2023 s. 19)

21C. Prosecution deadline for offences

- (1) A prosecution for an offence under this Ordinance may only be started before the end of 12 months after the date on which the offence is discovered by the Director.

Note—

This replaces the time limit under section 26 of the Magistrates Ordinance (Cap. 227).

- (2) Subsection (1) does not apply in relation to an offence committed before the material date.

(Added 12 of 2023 s. 19)

22. Codes of Practice relating to operation of residential care homes

- (1) The Director may issue from time to time Codes of Practice setting out principles, procedures, guidelines and standards for the operation, keeping, management or other control of residential care homes.
- (2) A copy of every Code of Practice issued from time to time under subsection (1) shall be made available during the hours of business by the Director for inspection by the public free of charge at such offices of the Government as the Director may direct.

23. Regulation

- (1) The Secretary for Labour and Welfare may by regulation provide for or in relation to residential care homes for— (*Amended 17 of 1999 s. 3; 12 of 2011 s. 44*)
- (a) the operation, management, supervision and inspection thereof;
 - (b) the classes or description thereof;
 - (c) the duties and responsibilities of operators and responsible persons of residential care homes;
 - (d) the qualifications, experience, appointment, duties, responsibilities and discipline of persons employed for the purposes of the operation, management and supervision, including the number of persons to be so employed in relation to the number of residents cared for therein and the registration by the Director of any such person for the purposes of that employment;
 - (e) the admission of residents thereto having regard to the age of residents who may be admitted to any class or description thereof;
 - (f) the medical examination of the residents cared for and the persons employed therein;
 - (g) the exclusion therefrom of any resident or employee and measures to preserve the health and well-being of residents or employees;
 - (h) the discharge of residents therefrom and the procedure to be adopted for the discharge, including the period of notice to be given for the discharge of any resident cared for therein;
 - (i) the control and supervision of activities therein;
 - (j) the adequacy, suitability and use of equipment therein;

- (k) the keeping, in respect thereof, of records, time-tables, menus and books of account;
 - (l) the reports and information to be supplied to the Director in respect thereof;
 - (m) the design, construction, hygiene and sanitation of residential care homes;
 - (n) the precautions to be taken against fire or other peril likely to endanger the lives or health of residents cared for therein;
 - (o) the provision of and control of entrances to and exits therefrom;
 - (p) the disclosure of and provision of information relating to the level or amount of fees and other charges that may be charged or imposed in respect of the services provided therein or otherwise on account of the care of residents thereat;
 - (q) *(Repealed 12 of 2011 s. 44)*
 - (r) subject to section 24, the fees to be charged for any matter prescribed or permitted by this Ordinance;
 - (ra) the promotion, including the advertising or marketing, of residential care homes by specifying that licences are for the time being in force in respect of the residential care homes; *(Added 12 of 2011 s. 44)*
 - (s) generally, carrying into effect the provisions of this Ordinance.
- (2) Any regulation made under this section may—
- (a) prohibit the performance of particular acts without the consent of the Director;
 - (b) authorize the Director to require or prohibit the performance of particular acts; and

- (c) require particular acts to be performed to the satisfaction of Director.
- (3) The Director may, by notice in writing to a person who operates, keeps, manages or otherwise has control of a residential care home, waive wholly, partly or conditionally the requirements of any regulation in respect of that residential care home and may amend or withdraw any such notice.
- (4) Regulations made under this section may provide that a contravention thereof is an offence punishable by a fine not exceeding level 6 and a term of imprisonment not exceeding 2 years and punishable by a fine not exceeding \$10,000 for each day during which the offence continues.
- (5) The amount of fees provided for under subsection (1)(r) need not be limited by reference to the amount of administrative or other costs incurred or likely to be incurred by the Director in the discharge of the Director's functions under this Ordinance.
- (6) Without affecting the generality of subsection (5), any regulation made under subsection (1)(r) may provide for—
 - (a) a different fee to be payable having regard to—
 - (i) type or description of any residential care home or of any matter prescribed or permitted under this Ordinance;
 - (ii) the period indicated in the licence; and
 - (b) the waiver, remission, reduction or refund of any fee.

(Amended 12 of 2023 s. 20)

24. No fee payable in respect of licence

(Amended 12 of 2023 s. 21)

No fee is payable— *(Amended 12 of 2023 s. 21)*

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- (a) *(Repealed 12 of 2023 s. 21)*
 - (b) on an application for the issue or renewal of a licence;
or *(Amended 12 of 2023 s. 21)*
 - (c) *(Repealed 12 of 2023 s. 21)*
 - (d) for the issue or renewal of a licence.
-

Schedule 1

[s. 8A]

Fit and Proper Requirement for Licence Applicant

(Schedule 1 added 12 of 2023 s. 22)

1. Matters for sole proprietor

For section 8A(a), the matters are—

- (a) whether the sole proprietor has been—
 - (i) convicted of an offence involving fraud or dishonesty in any place;
 - (ii) convicted of an indictable offence in Hong Kong;
 - (iii) sentenced to imprisonment (however described) in a place outside Hong Kong, whether or not the sentence is suspended; or
 - (iv) convicted of an offence under this Ordinance, Cap. 613 or Cap. 613A;
- (b) the record of the following matters in connection with the sole proprietor—
 - (i) any application for—
 - (A) a licence within the meaning of this Ordinance;
 - (B) a licence as defined by section 2(1) of Cap. 613; or
 - (C) a certificate of exemption as defined by section 2(1) of Cap. 613;

- (ii) any application for the renewal of a licence or certificate of exemption mentioned in subparagraph (i);
 - (iii) compliance with the conditions of a licence or certificate of exemption mentioned in subparagraph (i); and
 - (iv) compliance with this Ordinance, Cap. 613 or Cap. 613A; and
- (c) whether the sole proprietor—
 - (i) is an undischarged bankrupt;
 - (ii) has entered into a composition or scheme of arrangement with the sole proprietor's creditors; or
 - (iii) is a director of any body corporate that is in liquidation or is the subject of a winding-up order.

2. Matters for body corporate

For section 8A(b), the matters are—

- (a) whether the body corporate has been convicted of—
 - (i) an offence involving fraud or dishonesty in any place;
 - (ii) an indictable offence in Hong Kong;
 - (iii) an offence in a place outside Hong Kong; or
 - (iv) an offence under this Ordinance, Cap. 613 or Cap. 613A;
- (b) the record of the following matters in connection with the body corporate—
 - (i) any application for—
 - (A) a licence within the meaning of this Ordinance;

- (B) a licence as defined by section 2(1) of Cap. 613; or
 - (C) a certificate of exemption as defined by section 2(1) of Cap. 613;
- (ii) any application for the renewal of a licence or certificate of exemption mentioned in subparagraph (i);
- (iii) compliance with the conditions of a licence or certificate of exemption mentioned in subparagraph (i); and
- (iv) compliance with this Ordinance, Cap. 613 or Cap. 613A; and
- (c) whether the body corporate—
 - (i) is in liquidation or is the subject of a winding-up order;
 - (ii) has entered into a composition or scheme of arrangement with the body corporate's creditors; or
 - (iii) is a director of any body corporate that is in liquidation or is the subject of a winding-up order.

3. Matters for partnership

For section 8A(c), the matters are—

- (a) whether any partner in the partnership has been—
 - (i) convicted of an offence involving fraud or dishonesty in any place;
 - (ii) convicted of an indictable offence in Hong Kong;
 - (iii) if the partner is an individual—sentenced to imprisonment (however described) in a place outside Hong Kong, whether or not the sentence is suspended;

- (iv) if the partner is a body corporate—convicted of an offence in a place outside Hong Kong; or
 - (v) convicted of an offence under this Ordinance, Cap. 613 or Cap. 613A;
- (b) the record of the following matters in connection with any partner in the partnership—
 - (i) any application for—
 - (A) a licence within the meaning of this Ordinance;
 - (B) a licence as defined by section 2(1) of Cap. 613; or
 - (C) a certificate of exemption as defined by section 2(1) of Cap. 613;
 - (ii) any application for the renewal of a licence or certificate of exemption mentioned in subparagraph (i);
 - (iii) compliance with the conditions of a licence or certificate of exemption mentioned in subparagraph (i); and
 - (iv) compliance with this Ordinance, Cap. 613 or Cap. 613A; and
- (c) whether any partner in the partnership—
 - (i) is an undischarged bankrupt;
 - (ii) is in liquidation or is the subject of a winding-up order;
 - (iii) has entered into a composition or scheme of arrangement with the partner's creditors; or

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- (iv) is a director of any body corporate that is in liquidation or is the subject of a winding-up order.
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Schedule 2

[s. 11E]

Fit and Proper Requirement for Responsible Person

(Schedule 2 added 12 of 2023 s. 22)

For section 11E, the matters are—

- (a) whether the person has been—
 - (i) convicted of an offence involving fraud or dishonesty in any place;
 - (ii) convicted of an indictable offence in Hong Kong;
 - (iii) sentenced to imprisonment (however described) in a place outside Hong Kong, whether or not the sentence is suspended; or
 - (iv) convicted of an offence under this Ordinance, Cap. 613 or Cap. 613A;
- (b) the record of the following matters in connection with the person—
 - (i) any application for—
 - (A) a licence within the meaning of this Ordinance;
 - (B) a licence as defined by section 2(1) of Cap. 613; or
 - (C) a certificate of exemption as defined by section 2(1) of Cap. 613;
 - (ii) any application for the renewal of a licence or certificate of exemption mentioned in subparagraph (i);

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- (iii) compliance with the conditions of a licence or certificate of exemption mentioned in subparagraph (i); and
 - (iv) compliance with this Ordinance, Cap. 613 or Cap. 613A; and
- (c) whether the person—
 - (i) is an undischarged bankrupt;
 - (ii) has entered into a composition or scheme of arrangement with the person's creditors; or
 - (iii) is a director of any body corporate that is in liquidation or is the subject of a winding-up order.